



CHAPTER civ.

An Act to authorise the Urban District Council of Skipton A.D. 1904.
to construct additional waterworks and to make further
provision with regard to the supply of electricity and for
the improvement health local government and finance of
the district and for other purposes. [22nd July 1904.]

WHEREAS the district of Skipton in the west riding of the
county of York is an urban district within the meaning
of the Local Government Act 1894 and is under the management
and control of the Skipton Urban District Council (in this Act
called "the Council") :

And whereas by an Act of the fourth year of George IV.
intituled "An Act for better supplying with water the Town of
Skipton in the West Riding of the County of York" and by
the Skipton Waterworks Act 1870 (in this Act called "the Act of
1870") the Company of Proprietors of the Skipton Waterworks
were authorised to construct waterworks and to supply water
in the township of Skipton the boundaries whereof were and
are coterminous with the boundaries of the said urban district :

And whereas by the Skipton Local Board of Health Act 1874
(in this Act called "the Act of 1874") the said local board of
whom the Council are the successors in title were authorised to
acquire the undertaking of the said company and certain sections
of the Act of 1870 were applied to the said local board :

And whereas the said local board acquired the undertaking
of the said company accordingly :

And whereas by an Order confirmed by the Local Government
Board's Provisional Orders Confirmation (No. 7) Act 1883 (in this

A.D. 1904. Act called "the Order of 1883") and by an Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1895 (in this Act called "the Order of 1895") the provisions of the Act of 1874 were amended :

And whereas the supply of water from the waterworks of the Council is inadequate to meet the existing and growing demands of the inhabitants of the district :

And whereas it is expedient that the Council should be empowered to construct the additional waterworks by this Act authorised and to acquire lands for the protection of their waterworks and that further provision should be made as in this Act contained in regard to their water undertaking :

And whereas it is expedient that the Council should be authorised to put into force the provisions of the Private Street Works Act 1892 with respect to the pavements situate between the footpaths and the roadway in High Street Skipton :

And whereas by the Skipton Electric Lighting Order 1901 confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1901 the Council were empowered to produce and supply electrical energy within the district for public and private purposes and it is expedient to make further provision in regard to the supply of electrical energy by the Council :

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and drains within the district and that the powers of the Council in relation to the health local government and improvement of the district should be enlarged as by this Act provided :

And whereas it is expedient that the Council should be enabled to raise moneys for the purposes of this Act :

And whereas plans and sections showing the lines and levels of the proposed waterworks and road diversion and the lands to be taken for the purposes of this Act with a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands respectively have been duly deposited with the clerk of the peace for the west riding of the county of York which plans sections and book of reference are hereinafter referred to as "the deposited plans sections and book of reference" :

And whereas it is expedient that the other provisions in this Act contained should be sanctioned :

And whereas estimates have been prepared by the Council for the purchase of land and for the execution of the works authorised by this Act and such estimates are as follows :—

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—

For the purchase of land and easements for and for the construction of the waterworks by this Act authorised the sum of sixty-nine thousand pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twelfth day of November one thousand nine hundred and three after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *West Yorkshire Pioneer* and *East Lancashire News* being a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning that meeting resolved to promote the Bill for this Act :

And whereas such resolution was published twice in the said *West Yorkshire Pioneer* and *East Lancashire News* and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-first day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill for this Act in the Offices of the Houses of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the *Borough Funds Act 1903* have been complied with :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Skipton Water and Improvement Act 1904.* Short title.

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Act divided
into Parts.

2. This Act is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Water.
- Part III.—Lands.
- Part IV.—Electricity.
- Part V.—Streets buildings and sewers.
- Part VI.—Sky signs and hoardings.
- Part VII.—Sanitary provisions.
- Part VIII.—Infectious disease.
- Part IX.—Milk provisions.
- Part X.—Police.
- Part XI.—Fire brigade.
- Part XII.—Common lodging-houses.
- Part XIII.—Financial matters.
- Part XIV.—Miscellaneous.

Incorporation of general enactments.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and not inconsistent with this Act) are incorporated with this Act (namely) :—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) ;

The Waterworks Clauses Act 1847 except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 of that Act with respect to accounts and except also the words in section 44 “ with the consent in writing of the owner or reputed “ owner of any such house or of the agent of such “ owner ” ; and

The Waterworks Clauses Act 1863 ;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof but these provisions shall apply only to the reservoir and the road by this Act authorised and the works immediately connected therewith.

Interpretation.

4. Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings unless there is something in the subject or the context repugnant to such construction Provided that in this Act or the

Acts wholly or partially incorporated with this Act for the purposes of this Act— A.D. 1904.

“The undertakers” and “the company” mean the Council.

In the Railways Clauses Consolidation Act 1845 for the purposes of this Act—

“The railway” means the reservoir the road or the works immediately connected therewith by this Act authorised :

“The centre of the railway” means with respect to the road the centre of the road and with respect to the reservoir the boundaries of such reservoir.

In this Act unless the subject or the context otherwise requires—

“The district” means the urban district of Skipton in the west riding of the county of York :

“The Council” means the urban district council of the district :

“The clerk” “the surveyor” and “the inspector of nuisances” respectively mean the clerk the surveyor and inspector of nuisances appointed by the Council in pursuance of the powers of any public Act :

“Medical officer” means the medical officer of health of the Council or of any combined district within which the district is or may be comprised and includes any person duly authorised to act temporarily as medical officer of health :

“The water undertaking” means the water undertaking of the Council :

“Water revenue” means and includes all moneys received by the Council for or in relation to the water undertaking other than borrowed moneys and other moneys which ought to be carried to capital account :

“Drainage area” means any area or areas within which the waters which the Council are authorised to impound or take arise and flow :

“The Act of 1870” means the Skipton Waterworks Act 1870 :

“The Act of 1874” means the Skipton Local Board of Health Act 1874 :

“The Order of 1883” means an Order relating to Skipton confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 7) Act 1883 :

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“The Order of 1895” means the Skipton Order 1895 confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 6) Act 1895:

“Dairy” includes any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale:

“Dairyman” includes any cowkeeper purveyor of milk or occupier of a dairy:

“The Public Health Acts” means the Public Health Act 1875 and any Act amending the same:

“Owner” and “street” have the same respective meanings as they have in the Public Health Act 1875:

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support:

The expression “sky sign” shall also include any balloon parachute or other similar device employed wholly or in part for the purpose of an advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of an advertisement or announcement;

(2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported;

(3) Any word letter model sign device or representation as aforesaid relating exclusively to the business

of a railway company and which is or may be placed wholly upon or over any railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place: A.D. 1904.

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district:

“Closet accommodation” means any receptacle for human excreta and the fittings and apparatus connected therewith:

“Daily penalty” means a penalty for every day on which any offence is continued after conviction:

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage, bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or of any local authority as defined by section 34 of the Local Loans Act 1875 but does not include securities of the Council or annuities rentcharges or securities payable to bearer.

PART II.

WATER.

5. Subject to the provisions of this Act the Council may make construct lay down and maintain in the situation and lines and according to the levels shown on the deposited plans and sections relating thereto and in and upon the lands described upon such plans the several works shown on the said plans together with all proper embankments bridges roads approaches ways wells tanks basins gauges filter beds dams sluices bye-washes waste weirs outlets outfalls discharge pipes adits shafts tunnels aqueducts culverts cuts channels conduits drains mains pipes standpipes junctions valves telegraphs telephones and other means of electric communication engines pumping machinery constructions apparatus buildings houses works and conveniences connected with or ancillary to the said works or any of them or which the Council may consider necessary for inspecting maintaining cleansing repairing conducting managing and using the same The works

Power to
construct
new works.

A.D. 1904. — shown on the deposited plans and sections comprise the following principal works (that is to say) :—

Work No. 1 A reservoir situate wholly in the parish of Embsay-with-Eastby in the rural district of Skipton in the west riding of the county of York to be formed by means of an embankment across the valley of the Embsay Beck on certain fields numbered 204 206 207 212 and 213 on the 1/2500 Ordnance map of the said parish of Embsay-with-Eastby published in 1891 such embankment commencing in field numbered 204 as aforesaid at a point 2·5 chains or thereabouts measured in an easterly direction from the western corner of the said field and 8·9 chains or thereabouts measured in a north-westerly direction from the south-eastern corner of the said field and terminating in the said field numbered 212 as aforesaid at a point 3·9 chains or thereabouts measured in a north-westerly direction from the south-east corner of the said field and two chains or thereabouts measured in a westerly direction from the north-eastern corner of the said field such reservoir extending up the valley of the Embsay Beck and its tributaries in a north-easterly direction to a point 3 chains measured in an easterly direction from the south-east corner of the cottage in the occupation of Mary Ann Tattersall and Betsy Tattersall and one chain measured in a north-westerly direction from the north-east corner of field numbered 215 on the said 1/2500 Ordnance map of the said parish of Embsay-with-Eastby and in a north-westerly direction to a point 3·1 chains measured in a south-easterly direction from the north-west corner of the field numbered 201 on the said 1/2500 Ordnance map of the said parish of Embsay-with-Eastby and 5·2 chains or thereabouts measured in a northerly direction from the south-west corner of the said field :

Work No. 2 An aqueduct consisting of one or more lines of pipes situate partly in the parish of Embsay-with-Eastby in the rural district of Skipton and partly in the parish and urban district of Skipton commencing in the aforesaid reservoir (Work No. 1) at a point 16·3 chains or thereabouts measured in a north-westerly direction from the north-west corner of the building known as the Crown Spindle Works and terminating by a junction with the existing main of the Council in High Street Skipton immediately opposite the Skipton Town Hall :

Work No. 3 A road diversion situate in the said parish of Embsay-with-Eastby commencing by a junction with the existing road known as Embsay Pasture Road at a point 5 chains or thereabouts measured in a straight line along the said road in a north-westerly direction from the north-west corner of the house known as Crown Cottage and terminating by a junction with the existing Moor Road situate on the Embsay-with-Eastby Common at a point 6·9 chains or thereabouts measured in a straight line in a south-easterly direction from the south-east gable of the house known as Crag End : A.D. 1904.

Provided that no telegraph telephone or other means of electric communication constructed under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

6. Subject to the provisions of this Act the Council may in the construction of the works by this Act authorised deviate from the lines or position thereof respectively as shown on the deposited plans relating thereto to any extent within the limits of deviation defined on those plans and where the line of any work is shown on those plans as passing along any road and no limits of deviation are marked on the deposited plans the Council may in making such work deviate laterally to any extent within the boundaries of such road and the Council may also deviate from the levels of the works by this Act authorised as delineated on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards Provided that no such deviation upwards shall cause any part of any pipe to be raised above the surface of any road or (except for the purpose of crossing any stream or railway) ground unless shown upon the deposited sections as intended to be placed above the surface of the ground or to a greater extent than is shown Provided also that if it be found necessary or expedient in the construction of the reservoir by this Act authorised to alter the situation of any embankment as shown on the deposited plans the Council may within the limits of deviation thereof marked on the deposited plans alter the same accordingly and may also in the construction of the works authorised by this Act deviate vertically from the levels of such embankment as shown with reference to the datum line of such sections to any extent not exceeding twenty feet but the Council shall not construct any embankment of the said reservoir of a greater height above the general surface of the

Power to deviate in construction of works.

A.D. 1904. — ground than that shown on the deposited sections in the case of the corresponding embankment and three feet in addition.

Power to
take waters.

7. Subject to the provisions of this Act the Council may take collect divert impound and use for the purposes of the water undertaking all such brooks streams springs and waters as can or may be intercepted or taken by the works by this Act authorised and especially the waters of the Embsay Beck and its tributaries including Lowburn Gill and Moor Beck at and above the point at which the same will be intercepted by the said reservoir (Work No. 1) hereinbefore described.

As to com-
pensation
water.

8.—(1) Until the expiration of the period in this Act contained or provided for the completion of the said reservoir the Council may take from the Embsay Beck any water they may require subject to the following restrictions :—

They shall place a gauge weir across the said Embsay Beck at or near the proposed intake through an aperture in which two hundred and sixty-one thousand gallons of water shall be allowed to pass and flow down the said Embsay Beck continuously every day of twenty-four hours :

During such time as the flow of water through the said aperture of the gauge weir into the said Embsay Beck shall be less than at the rate of two hundred and sixty-one thousand gallons per day of twenty-four hours the Council shall not be entitled to draw any water therefrom but during such time as the flow is in excess of such rate the Council may take all or such part of the excess as they may require.

After the said reservoir is completed the following provisions shall apply :—

(A) The Council shall during every day of twenty-four hours discharge or deliver into the Embsay Beck at a point therein situate not more than one hundred yards below the foot of the embankment of the reservoir not less than two hundred and sixty-one thousand gallons of water in a continuous flow :

(B) For the purpose of measuring the quantity of water to be so discharged or delivered into the Embsay Beck the Council shall erect and maintain at a point on the said Embsay Beck below the said reservoir a proper and suitable measuring gauge over or through which the said compensation water shall flow.

(2) The said gauge weir and the measuring gauge shall respectively be constructed and duly maintained in a position approved by and otherwise to the reasonable satisfaction of the surveyor engineer or other person appointed in that behalf by the West Riding of Yorkshire Rivers Board (hereinafter referred to as "the rivers board") and shall be open to the inspection and examination of the said rivers board and their duly authorised officers and agents and of all other persons interested therein.

(3) In case the Council shall before the date of the completion of the said reservoir take any water from the Embsay Beck during any time in which less than the rate of two hundred and sixty-one thousand gallons per diem is flowing through the aperture of the said gauge weir or after the said reservoir is completed shall omit or fail to discharge or cause to flow the quantity of water by this Act required to flow or be discharged over or through the said measuring gauge as the case may be the Council shall be liable to a penalty not exceeding five pounds for every day on which any such act omission or default shall occur and such penalty shall be recoverable by the said rivers board in a court of summary jurisdiction. The Council shall also make compensation to each of the persons affected thereby who may have sustained loss by any such act omission or failure for or in respect of all such loss so sustained by them respectively by reason of such act omission or failure the same to be recoverable with costs in any court of competent jurisdiction.

(4) If any difference arises between the Council and the rivers board or any other person so interested with respect to the construction or use of any gauge or the accuracy state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the Board of Trade.

(5) The provisions of this section shall be accepted and taken by all parties interested as full compensation for all water the Council may or can at any time by any works now or hereafter to be constructed collect divert impound and abstract from the brooks streams diversions springs and waters situated within the area delineated and coloured pink on the Ordnance map signed by George Henry Hill on behalf of the Council and by Trevor Edwards on behalf of the rivers board which map shall be deposited with the clerk of the peace for the west riding of the county of York who shall permit any person to inspect the same within the usual office hours on payment of one shilling and a copy or

A.D. 1904. — copies thereof duly certified by the said clerk of the peace shall be evidence.

Power to take additional lands by agreement.

9. The Council may for the purposes of their water undertaking purchase by agreement any lands not exceeding thirty acres in addition to the lands which they are authorised by this Act to take by compulsion and in addition to the lands which they were authorised to purchase under the Act of 1874 as amended by the Order of 1895 but the Council shall not create or permit the creation of any nuisance on any such lands and shall not erect or permit the erection or user on any such lands of any buildings other than houses or buildings required for or used in connection with the water undertaking.

Power to agree as to drainage of lands &c.

10. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the reservoirs and works by this Act authorised with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Council flowing to upon or from such lands directly or derivatively into such reservoirs and works.

Power to hold lands for protection of waterworks.

11. The Council may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

New waterworks to form part of water undertaking of Council.

12. The waterworks by this Act authorised to be made by the Council shall form part of the water undertaking of the Council and the Council may use the water obtained by means thereof for the purpose of supplying water under the Act of 1874 and this Act.

Provisions as to fouling of water.

13. For the prevention of the pollution of any waters over which the Council have any powers of user or of any watercourse through which any water may for the time being flow into any such waters the Council may with the consent of the county council

in whose county and of the district council in whose district such pollution occurs enforce the provisions of the Rivers Pollution Prevention Acts 1876 and 1893 or of the Public Health Acts with respect to any such waters and watercourses or in respect of any nuisance which may exist in proximity thereto and the Council with such consent as aforesaid shall have and may if they think fit from time to time exercise such or the like powers as may for the time being be exercised by such county council or district council as the case may be under any enactment for the prevention of the pollution of any such water or watercourse or for the prevention or abatement of any such nuisance and the provisions of such enactment shall for the purpose aforesaid be extended and apply mutatis mutandis to the Council Provided that if the county council in whose county and the district council in whose district the pollution occurs or is likely to occur refuse or neglect for the space of one month after being requested by the Council by notice in writing under the hand of their clerk either to enforce the provisions of the said Acts or to consent to the enforcement thereof by the Council the Council may appeal to the Local Government Board who may give to them such consent and thereupon the Council may proceed to enforce the provisions of the said Acts.

Any expenses incurred by the Local Government Board in relation to any inquiry under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector shall be paid by and recoverable from the Council or the county council or the district council or partly from the one and partly from the other or either of them as the Local Government Board may determine.

14.—(1) The Council may for the purposes of their water undertaking construct lay down erect and maintain such conduits mains pipes culverts sluices wells tanks cisterns engines machinery buildings works and conveniences as they may from time to time deem necessary.

Application
of provisions
of Public
Health Acts
as to water-
works.

(2) The Council shall in carrying out the provisions of subsection (1) of this section have the powers of a local authority under section 54 of the Public Health Act 1875 in respect to the carrying of water mains within and without their district and for the purposes of that section all parishes and places within the water limits shall be deemed to be included in the district of the Council.

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(3) In the exercise of the powers of this section the Council shall be subject to the provisions as far as they are applicable of the Public Health Acts and the Waterworks Clauses Act 1847 in the same manner and to the same extent as if such powers were conferred by those Acts.

Period for
completion
of works.

15. If the works by this Act authorised are not completed within seven years from the passing of this Act the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Provided always that subject to the restrictions and provisions of this Act the Council may at any time after the expiration of the said period lay down additional lines of pipes and alter enlarge extend and renew their mains pipes and other works as they may think expedient to provide for the requirements of their water supply.

For preven-
tion of
plumbism.

16.—(1) All water supplied by the Council under this Part of this Act whether in bulk or otherwise and used for dietetic purposes shall before delivery be efficiently and continuously filtered through such material or shall be chemically treated so as to prevent the action of such water on lead or on any material used for the construction of pipes cisterns or other receptacles into the manufacture of which lead enters in a manner injurious or liable to prove injurious to public health.

(2) The Council shall forthwith construct and thenceforward maintain the necessary apparatus and appliances to prevent such action.

(3) If the Council shall fail to construct such apparatus or appliances or apply such treatment as shall efficiently prevent such action or shall fail thenceforward to efficiently maintain the same or shall at any time supply water in such a condition as to be capable of such action they shall be liable to a penalty not exceeding ten pounds for every day on or on any part of which any infringement of this section shall occur and such penalty shall be recoverable summarily at the instance of the county council.

(4) For the better enforcement of the provisions of this section any person duly authorised by the county council may at any time enter on the property of the Council for the purpose of inspecting the apparatus and appliances and materials used for filtering or treating the water as the case may be and may take samples of the water in duplicate and shall thereupon before he carries away the same from the property of the Council seal up

and mark such samples and shall leave one of such samples with the person (if any) in charge of the property and any person who molests hinders or obstructs any such person in the performance of his duty under this section shall be liable to a penalty not exceeding five pounds for every such offence. .

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17. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of small houses.

18. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Council not bound to supply several houses by one pipe.

19. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Notice of discontinuance.

20.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace

A.D. 1904. — or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

(4) So soon as the byelaws provided for by this section are in force section 48 of the Act of 1870 and section 18 of the Act of 1874 and any regulations made thereunder shall be repealed.

Supply of water for other than domestic purposes and by measure.

21. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. Provided also that the price to be charged for a supply by measure shall not exceed one shilling and sixpence per thousand gallons.

Power to sell or let meters.

22. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Council to let for hire any water fittings to any person supplied by them with water.

Notice to Council of connecting or disconnecting meters.

23. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring meters &c.

24. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the

quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained : A.D. 1904.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

25. The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply materials.

26. Sections 49 and 53 of the Act of 1870 and sections 20 and 33 of the Act of 1874 are hereby repealed. Sections 49 and 53 of Act of 1870 and sections 20 and 33 of Act of 1874 repealed.

27. The words "gross annual value" in the Acts of 1870 and 1874 are hereby defined to mean the gross estimated rental as estimated for the purposes of the poor rate. Definition of "gross annual value" in Acts of 1870 and 1874.

A.D. 1904.

Power to lay
pipes in
streets not
dedicated to
public use.

28. The Council may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Contracts for
supplying
water in
bulk.

29. The Council may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the water limits to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

For protec-
tion of Duke
of Devon-
shire.

30. The following provisions shall unless otherwise agreed in writing have effect for the protection of the Most Noble Spencer Compton Duke of Devonshire his heirs and assigns (all of which persons are in this section included in the expression "the owner") :—

(1) The Council shall not for the purpose of the aqueduct (Work No. 2) acquire otherwise than by agreement any lands of the owner or any other or greater right than the easement or right of laying maintaining and renewing the aqueduct or line of pipes in a strip of the owner's land not more than six feet wide The Council shall not fence off such strip of land from the other lands of the owner and the owner and his tenants shall at all times have the right of passing over such strip of land and so far as compatible with the rights of the Council therein of using the same for his or their own purposes :

(2) The Council shall provide and maintain for the free use of the owner and his tenants and the commoners having rights on Embsay-with-Eastby Common a fit place for washing sheep on a site below the reservoir (Work No. 1) approved by the owner or his agent with access thereto from the public road :

(3) The Council shall not take any stone or other minerals from Embsay-with-Eastby Common and shall not take any stone or other minerals from any other lands acquired by them from the owner under the powers of this Act save for the purpose of the construction of the works authorised by this Act : A.D. 1904.

(4) The owner shall have the sole right of shooting over the lands acquired by the Council in the parish of Embsay-with-Eastby under the powers of this Act whether or not hereafter covered with water with access and right of entry thereto and such rights may be exercised and enjoyed by the owner and his tenants and all persons authorised by the owner :

(5) The Council shall make good the drainage and sewerage of all lands and buildings belonging to the owner where interfered with by any of the works of the Council :

(6) In all cases where the supply of water to any land or building of the owner is severed or injured by the works of the Council a proper and sufficient supply not less in quantity or convenience than the supply existing before such severance or injury shall be given and maintained at all times by the Council for the use of the owner and his tenants free of charge and the Council shall bear the cost of making and maintaining all necessary works for affording such substituted supply :

(7) The Council shall so far as they lawfully may at the request of the owner supply water under the same regulations and at the same scale of charges as may for the time being be in force within the urban district of Skipton to any property of the owner within 200 yards of the aqueduct (Work No. 2) between the reservoir (Work No. 1) and Brackenley Lane as shown on the deposited plans :

(8) The Council shall construct the road diversion (Work No. 3) so that the new road shall have a width of 16 feet and shall be properly metalled to a width of 12 feet and rolled by a steam roller and fenced with stone walls not less than five feet high but with gates and posts at whatever points in the westerly wall may prior to the erection of such westerly wall be selected

A.D. 1904.

by the owner and the owner and his tenants shall so far as the Council have power to authorise the same have the use of such road and access through such gates to the road. The owner and his tenants shall also be entitled at any time at their own cost to alter the position of any such gates and posts or to make and use additional gates and posts in such wall as they may from time to time require for the accommodation of their adjoining lands. All gates and posts referred to in this subsection shall be kept in repair by the owner :

- (9) The Council shall erect a gate and posts across the new road at the end adjoining Embsay-with-Eastby Common :
- (10) The Council shall construct and maintain from the road diversion (Work No. 3) a road 15 feet in width metalled to a width of 12 feet with proper approaches either along the top or along the slope of the embankment of the reservoir (Work No. 1) (with a gradient if on the slope of the embankment not steeper than one foot in 20 feet) and shall construct and maintain gates and posts at each end of such road and the owner and his tenants shall be entitled to use such road as an access to the property of the owner on the south-east side of the reservoir (Work No. 1) :
- (11) The Council shall take all reasonable precautions for the protection of game on the property of the owner during the construction of the works authorised by this Act :
- (12) Except as hereinbefore provided with reference to the aqueduct (Work No. 2) the Council shall fence off all the property acquired by them for the purposes of the works by this Act authorised with stone walls of not less than five feet in height and shall maintain such walls in good repair and condition :
- (13) The owner shall sell and the Council shall buy the lands of the owner (including the timber and the two houses and buildings now occupied by Jeffery Wellock and David Read thereon) delineated on the plan signed by Gilson Martin on behalf of the owner and by John Mallinson on behalf of the Council and thereon coloured pink and containing forty-four acres or thereabouts :

- (14) The owner shall also sell and the Council shall buy the rights of the owner as lord of the manor in any common lands which may be acquired by the Council under the powers of this Act:
- (15) The owner shall also sell and the Council shall buy any rights of the owner as a commoner in any such lands but such last-mentioned rights shall be purchased jointly with the rights of other commoners and separately from his rights as lord of the manor:
- (16) The price or consideration for the sale of the lands of the owner shown in pink on the said plan and the houses buildings and timber thereon (exclusive of any claims of the tenants of the owner) and for the sale of the easement of laying and maintaining and renewing the aqueduct referred to in subsection 1 of this section shall be the sum of eight thousand seven hundred and seventeen pounds ten shillings and the Council shall pay one half of the said sum of eight thousand seven hundred and seventeen pounds ten shillings on the twenty-ninth day of September one thousand nine hundred and five and the balance of the said sum shall be paid in two equal instalments on the twenty-ninth day of September one thousand nine hundred and eight and the twenty-ninth day of September one thousand nine hundred and eleven with interest in the meantime at the rate of four pounds per centum per annum calculated from the said twenty-ninth day of September one thousand nine hundred and five. The purchase shall be completed on the twenty-ninth day of September one thousand nine hundred and eleven. Provided that the Council may require completion on an earlier day and shall in that case give the owner three calendar months' previous notice and pay the unpaid purchase-money and interest up to the date of completion or such earlier day. The purchase-money or compensation to be paid to the owner for the acquisition by the Council of any other property of the owner or any easements rights or interests therein and for his rights as lord of the manor mentioned in subsection 14 of this section shall unless otherwise agreed be determined in manner provided by the Lands Clauses Acts:
- (17) The acquisition by the Council of the lands of the owner shown in pink on the said plan shall not confer on the

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Council any common or other rights on the Embsay-with-Eastby Common and the Council shall without valuable consideration convey to the owner any common or other rights upon Embsay-with-Eastby Common which may become vested in them as appurtenant to any other lands already acquired or hereafter acquired by the Council for the purposes of the works authorised by this Act :

- (18) The Council shall within three months after commencing any of the works by this Act authorised pay to the owner the sum of one hundred pounds as compensation for the removal and rebuilding of and damage to the fences of the owner which the Council may require to interfere with for the purposes of the works. Provided that nothing in this subsection shall limit or restrict any other claim for compensation competent to the owner under this Act :
- (19) It shall be lawful for the Council or any person appointed by them in writing under the hand of their clerk at any time after giving seven days' previous notice in writing to the owner or his agent of their intention so to do or in case of emergency without notice to enter upon and inspect any lands or buildings of the owner within the drainage area of the reservoir and works by this Act authorised including any lands in which the owner is interested as lord of any manor or any water or watercourses thereon and if upon any such inspection it shall be found that the waters flowing into such reservoir are being or are liable to be polluted the owner shall so far as he legally can permit the Council at their own cost to construct such drains sewers or other works upon the lands of the owner as may be necessary for the prevention of such pollution and if any difference shall arise between the Council and the owner as to the necessity for or nature of any such works such difference shall be settled by arbitration. The section of this Act whereof the marginal note is "Provisions as to fouling of water" shall not apply to any lands or buildings of the owner including any lands in which the owner is interested as lord of any manor or any water or watercourses thereon :
- (20) The Council shall pay compensation to the owner and his tenants for any damage loss or injury which they

may sustain or be put to in consequence of any works or operations of the Council under the last preceding subsection and such compensation shall be settled in default of agreement by arbitration : A.D. 1904.

- (21) The costs charges and expenses of the owner and his tenants in connection with any arbitration under the two last preceding sections of this section shall unless the arbitrator otherwise directs be paid by the Council :
- (22) Whereas in the year 1895 the Council acquired the mill with the buildings cottages and land thereto (except the mines and minerals thereunder and rights of common and other rights of the owner therein) all known as the Council's Eastby Mill property in the township of Embsay-with-Eastby in anticipation of the same being required in connection with their water-works undertaking and such mill buildings cottages and land are no longer required by the Council Therefore the Council shall sell and the owner shall purchase the said mill buildings cottages and land (except as aforesaid) at the price of one thousand five hundred pounds :
- (23) The Council shall pay to the owner all costs charges and expenses of the owner in relation to this Act and of the opposition of the owner thereto and of the settlement of the price to be paid to the owner as hereinbefore provided and of the negotiating preparing and completing the terms of the withdrawal of such opposition and of carrying into effect the acquisition by the Council of the property of the owner under the powers of this Act and of otherwise carrying into effect the provisions of this section :
- (24) Any difference between the owner and the Council under this section other than questions purely of law shall except where otherwise provided for by this section be referred to arbitration under the Arbitration Act 1889.

PART III.

LANDS.

31. Subject to the provisions and for the purposes of this Act the Council may enter on take and use all or any of the lands Power to acquire lands.

A.D. 1904. delineated on the deposited plans and described in the deposited book of reference.

Correction of errors &c. in deposited plans and book of reference.

32. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the clerk to the council of the urban district or the parish as the case may be in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

33. The powers of the Council for the compulsory purchase of lands or easements under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Limiting quantity of commonable land to be taken.

34. The quantity of land which may be taken by the Council from the common or commonable land next hereinafter mentioned for the purposes of the reservoir and other works shall not exceed the quantities hereinafter mentioned in connection with such lands respectively :—

Works and Purposes for which Land will be taken.	Name by which Lands are known.	Parish in which Lands are situate.	Quantity to be taken.
For the purposes of Work No. 1 -	Embsay-with-Eastby Common.	Embsay-with-Eastby.	4·97 acres.
For the purposes of Work No. 3 -	Embsay-with-Eastby Common.	Embsay-with-Eastby.	·03 acre.

Council may acquire easements only

35. The Council may in lieu of acquiring any lands for the purpose of the aqueduct by this Act authorised and shall where the

same is intended to be laid in on or over any common or commonable land acquire such easements and rights in such lands as they may require for the purpose of constructing laying inspecting maintaining cleansing repairing or managing the same and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts :

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in lands for
certain pur-
poses.

Provided always that nothing herein contained shall authorise the Council except as aforesaid to acquire by compulsion any such easement or right in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement or right only and except as aforesaid every notice to treat for the acquisition of an easement or right shall be endorsed with notice of this proviso. Provided also that as regards any lands taken or used by the Council for the purposes of constructing or laying such aqueduct therein where such aqueduct is laid underground the Council shall not (unless they purchase such lands and not merely easements or rights therein) be required or (except during the construction of the works or where otherwise agreed with the owners and occupiers of such lands) entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being of such lands shall (except where otherwise agreed) at all times except during the construction cleansing renewal or repair of the aqueduct have the same rights of passing over such lands for all purposes of or connected with the enjoyment of the adjoining lands as if such lands had not been taken or used by the Council.

36. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons un-
der disability
may grant
easements
&c.

A.D. 1904.

Power to
retain sell
&c. lands.

37. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange Provided that nothing in this Act shall affect or diminish the right of pre-emption under the Lands Clauses Acts of the Most Noble Spencer Compton Duke of Devonshire his heirs and assigns.

Application
of moneys
from sale
&c. of lands.

38. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

PART IV.

ELECTRICITY.

Power to
supply elec-
tric fittings.

39.—(1) The Council may provide sell let for hire and fix set up alter repair and remove but shall not manufacture lamps meters electric lines fittings apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in

that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed. A.D. 1904.

(2) Any expenses incurred by the Council in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the Council under this section shall be applied in manner provided by section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

40. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December. Altering date for filling up annual accounts for electric lighting.

41. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electric light or electrical power or energy from every person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges Provided that the Council shall make the same allowance to all consumers under similar circumstances. Discount on electric lighting and power accounts.

42. The Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Council in respect of a supply to the same or other premises. Council may refuse to supply electrical energy in certain cases.

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As to supply of electricity where consumer has separate supply.

43. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Council a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Council such minimum annual sum as will give to the Council a reasonable return on the capital expenditure and other standing charges incurred by the Council to meet the possible maximum demand of such person. In case the Council and the person demanding such supply of electrical energy shall fail to agree the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

Supply of electrical energy outside district.

44. If the local authority for any district adjacent to the area which the Council are for the time being authorised to supply with electrical energy are or shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament to supply energy or if any company are so authorised to supply energy within any such district the Council and such local authority or company as the case may be may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Council to such authority or company but such agreements shall in all respects be subject to the approval of the Board of Trade:

Provided that the Council shall not except with the consent in writing of the Yorkshire Electric Power Company (in this section referred to as "the company") under its corporate seal supply electrical energy for any purpose within or for use within any portion of the existing area of supply of the company outside the district.

PART V.

STREETS BUILDINGS AND SEWERS.

Approval of plan to be void after certain intervals.

45. The approval by the Council of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

As to plans or sections approved after the passing of this Act within two years from the date of such approval;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act:

And at the expiration of those respective periods fresh notice and deposit and approval shall unless the Council otherwise determine be requisite. A.D. 1904.

The Council shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

46. The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force or any byelaw thereunder. As to plans deposited with Council.

47. When the plans of any new street are submitted to the Council for approval the Council may vary or alter the position direction or level of any intended new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto. The Council shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section. Power to vary position or direction of new streets.

48.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line. Council may define future line of existing streets.

(2) The Council if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road where the same

A.D. 1904. abuts upon the street or road and the same when purchased shall vest in the Council as part of the street or road.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase-money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Council may declare where streets begin and end.

49. The Council may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending.

Intersecting streets.

50. No street shall be laid out more than two hundred yards in length without an intersecting street.

Continuation of existing streets to be deemed new streets.

51. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street.

No building allowed until street defined.

52. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

53. Every person desirous of forming a communication for horses or vehicles across any footpath so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Council and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise and if any person drives or permits or causes to be driven any horse or vehicle across any footway unless and until such communication as aforesaid has been so made or on or along any part of any such footway other than the part over which such communication has been made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby done to such footway. Provided that nothing in this section shall be deemed to apply to the temporary crossing of footways during building operations if means satisfactory to the Council be taken to protect such footways from injury and for the convenience of foot passengers.

A.D. 1904.
Crossings
for horses
or vehicles
over foot-
ways.

54. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ; and

The roofing or covering over of any open space between walls or buildings ;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

What to be
deemed new
buildings.

A.D. 1904.

Height of
buildings.

55. No new building shall without the approval of the Council be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance. Provided that the approval of the Council shall not in the case of rebuilding any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property. In determining the height of any building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the parapet or to the eaves of the roof as the case may be. In the case of a gable facing the street the measurement shall be to a point half way between the level of the eaves and the ridge. In the case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves :

Provided that where any new building shall front to two or more streets the height of such new building shall be determined according to the width of the widest of such streets.

Height of
chimneys.

56. With respect to the height of chimneys the following provisions shall have effect (that is to say) :—

(1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery sizing-house dye-house gasworks corn-mill foundry or building used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground [and any other condition requisite for consideration in determining such height :

(2) Any person who shall offend against any provision of this or the preceding section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Erection of
buildings to
greater

57. In case any building is after the passing of this Act erected or raised to a greater height than the adjoining building and

any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised. Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

A.D. 1904.
height than
adjoining
buildings.

58. It shall not be lawful for any person without the consent of the Council in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Council and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

Deposit of
building
materials or
excavations
not to be
placed with-
out consent.

59. The Council may remove appropriate use and dispose of all old materials existing in any street at the time of the execution by the Council of any works in such street unless the owners of buildings or lands in such street within forty-eight hours after notice so to do served on them by the surveyor remove such materials or their respective proportion thereof and the Council may if they think fit allow such sum as they may fix to be the reasonable value thereof to such owners for any materials which have been re-used or removed by the Council.

Materials in
streets.

60. If the footway of any street repairable by the inhabitants at large be injured by or in consequence of any excavations or other works on lands adjoining thereto the Council may repair or replace the footway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Council by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

Recovery of
damages
caused to
footways by
excavations.

A.D. 1904.

As to temporary and movable buildings.

61.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within six weeks after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval of the Council or before the expiration of six weeks without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty of the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district in respect to new buildings and any tent not remaining for more than seven days ;

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building

but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion ;

A.D. 1904.
—

- (c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light ; and
- (d) Buildings (other than dwelling-houses) erected or set up on the premises of any railway company and used for the purposes of their railway.

62. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such structure.

Power to sell materials of temporary buildings.

63. The Council may (if in the circumstances of the case they think it expedient so to do) make it a condition of approving the plans of any new street that such street shall be so laid out and formed that the same shall not terminate with a dead end or cul-de-sac and in any such case the street shall not be laid out and formed except in accordance with such condition unless the person laying out the street can show that it is impossible for him to comply therewith.

Provision for preventing formation of culs-de-sacs.

64. If in any new street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof shall be paid by the Council.

Council may require enlarged sewer.

65. Where under the provisions of the Public Health Acts or this Act the Council have power to require any street to be sewered by reason of such street not having theretofore been

As to separate sewers.

A.D. 1904. sewerage to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively and the Council may if such separate sewers have been provided from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only and where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Council shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply.

For preventing soil and sand from being washed into streets.

66. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable.

For preventing water flowing on footpath.

67. Where premises abutting upon any street are so situate that the surface water from such premises is liable to flow on to the footpath of such street the owner of such premises shall within one month after service of an order of the Council for that purpose execute such works as may be necessary to prevent the water from such premises from flowing over the footpath and in default of compliance with such order within the period

aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings. A.D. 1904.

68. With respect to the repairing or enclosing of dangerous places the following provisions shall have effect (namely):— Dangerous places to be repaired or enclosed.

(1) If any building wall steps structure or other thing or any well excavation reservoir pond stream dam or bank on any land or place is in the opinion of the Council for want of sufficient repair protection or enclosure dangerous to the passengers along any street or footpath the Council may order the owner within the period specified in such order to repair remove protect or enclose the same so as to prevent any danger therefrom:

(2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Council may cause such works as they think proper to be done for effecting such repair removal protection or enclosure and the expenses thereof shall be payable by the owner and may be recovered summarily.

69.—(1) In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs dangers exist to passengers or vehicles in such street the Council may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs. As to urgent repairs to private streets.

(2) If within such reasonable time as the Council may in such notice have specified repairs are not executed the Council may execute the repairs and may recover the cost of so doing from the owner or owners in default or if there be more than one owner in proportion to frontage summarily as a civil debt.

(3) If the Council are unable to discover the name or abode of any owner the Council may execute such repairs without having served upon him any notice.

70. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the district extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing Prevention and removal of projections over streets.

A.D. 1904. of this Act which the Council may determine to be dangerous or an obstruction to the safe and convenient use of any street.

In executing works for owner Council not liable for damages save in case of negligence.

71. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

Council to make communications between private drains and their sewers on payment &c.

72. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

Private Street Works Act 1892 to apply to pavement in High Street Skipton.

73. The pavements between the footpaths and the roadway in High Street Skipton shall be deemed streets or parts of streets within the meaning of the Private Street Works Act 1892 and the Council may under the said Act resolve to level pave flag and make good the same and the expenses shall be apportioned (subject as in that Act mentioned) upon premises fronting adjoining or abutting on High Street aforesaid:

Provided that section 20 of the said Act shall not apply to any part of such pavements and that no part of such pavements shall be adopted under section 19 of the said Act without the consent of the owner thereof.

Exemption for railway property.

74. Nothing in this Part of this Act or any byelaws to be made thereunder shall apply to any buildings (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway.

PART VI.

SKY SIGNS AND HOARDINGS.

Regulations as to sky signs.

75.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall

not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed : A.D. 1904.

Provided that in any of the following cases a licence of the Council under this subsection shall become void (namely) :—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

76.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

As to hoardings and other struc-

A.D. 1904.
—
tures used
for advertis-
ing purposes.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any such hoarding or similar structure to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Council may determine.

(3) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the clerk or surveyor.

(6) Any person aggrieved by the refusal of the Council to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt.

PART VII.

SANITARY PROVISIONS.

Extension
of section 41
of Public
Health Act
1875.

77. The powers conferred by section 41 of the Public Health Act 1875 upon the Council to empower the surveyor and inspector of nuisances to enter premises for the purposes therein mentioned shall extend to authorise the Council if on the report of either of such officers it shall appear that they have reason to suspect that any drain watercloset earthcloset privy ashpit or cesspool is in a condition in which it is a nuisance or injurious to health

or likely to become so to empower the surveyor or inspector of nuisances after twenty-four hours' notice to the occupier of such premises or in case of emergency without notice to enter such premises and to act in accordance with the provisions of the said section as if such written application had been made as therein mentioned. A.D. 1904.

78. Where any inn public-house beerhouse eating-house theatre or other place of public entertainment built before or after the passing of this Act has no urinal belonging or attached thereto the Council may by notice in writing require the owner of such inn public-house beerhouse eating-house theatre or other place of public entertainment to provide and maintain on the premises for the use of persons frequenting the same a proper and sufficient urinal or urinals and keep the same in good order and condition Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding ten shillings Provided always that this section shall not apply to a refreshment room now or hereafter belonging to any railway company. Urinals to be attached to refreshment rooms.

79. If any urinal or other sanitary convenience now or hereafter opening on any street shall in the opinion of the Council be so placed or constructed as to be a nuisance or offensive to public decency the Council by notice in writing may require the owner to remove such urinal or convenience or otherwise to reconstruct the same in such a manner as may be required to abate the nuisance and remove the offence against public decency Any person who fails within a reasonable time to comply with such notice or to show that it was given without justification shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Council may require removal or alteration of urinals.

80.—(1) The Council may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the person by whom plans relating to the new building are deposited require that such new building shall be provided with proper and sufficient water-closets. Power to require waterclosets for new buildings.

(2) The Council may on the erection of any new building when a sewer and water supply sufficient for a watercloset are not reasonably available require one or more proper and sufficient earthclosets to be provided at or in connection with such building.

A.D. 1904.

(3) Any person offending against any requirements of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to appeal under last preceding section.

81. Where any person deems himself aggrieved by any requirements of the Council under the preceding section such person may within fourteen days after the service of notice of the requirement appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties.

Apportionment of expenses in case of joint owners.

82. Where under the provisions of this Part of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Part of this Act are recoverable by the Council from the owner shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor.

Charge for emptying ashpits of trade refuse.

83. If any trade refuse or any building materials or other materials or rubbish of a like description be deposited in any dustbin ashpit or ashtub the Council may make a reasonable charge for the removal of the same which charge shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Public conveniences and lavatories.

84. The powers of the Council under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences in or under any street repairable by the inhabitants at large and to provide and maintain in proper and convenient situations lavatories in or under any such street for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) or of any lavatory so provided and the Council may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and any such lavatories for such periods at such rents and subject to such conditions as to the charges to be made for the use thereof and otherwise as they may think proper.

85.—(1) It shall not be lawful for any person to cause or suffer any refuse sweepings garbage or offal from any manufactory manufacturing work workshop or shop that would interfere with the treatment or utilisation of the sewage of the district to flow or pass into any sewer of the Council or to flow or pass into any drain channel or watercourse communicating with any such sewer in such manner that the same will be carried by through or out of such drain channel or watercourse into any such sewer and if any person is guilty of any act or omission in contravention of this section he shall be liable to a penalty not exceeding twenty pounds and in case of a continuing offence to a further penalty not exceeding forty shillings for every day during which such offence continues after the expiration of a time to be determined in that behalf by the court of summary jurisdiction before whom he is convicted. Provided that any person charged with an offence against this section shall not be convicted thereof if he shows to the satisfaction of the court of summary jurisdiction before whom he is charged that he has duly used the best practicable and reasonably available means (including settling tanks and screens for the elimination of grease and solid matter) of depriving such refuse sweepings garbage or offal of qualities that would make it likely to interfere with the treatment or utilisation of the sewage of the district.

A.D. 1904.

Prohibition
of discharge
of trade
refuse into
sewers.

(2) The Council shall from time to time remove all solid matter eliminated from such refuse sweepings garbage or offal as aforesaid.

(3) If at the date of the passing of this Act the owner or occupier of any manufactory workshop or shop had and exercised the right to pass into any sewer of the Council or into any drain channel or watercourse communicating with such sewer any such refuse sweepings garbage or offal the Council shall make compensation to such owner or occupier for any loss or damage caused by any requirement of the Council under this section.

(4) In the event of any compensation being paid by the Council as aforesaid the plant and apparatus erected after the passing of this Act for dealing with the trade refuse of the owner or occupier to whom such compensation is paid shall be deemed to be landlord's fixtures.

(5) No person shall be liable to conviction for an offence under this section unless the Council shall have given him six months' notice of the provisions of this section and of their requirements thereunder prior to the date of such offence but

[A.D. 1904. the Council shall not by reason of their making any requirement be prevented from subsequently making other and further requirements.

For regulating manufacture and sale of ice-cream &c.

86. Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity or any materials used in the manufacture thereof who within the district—

- (A) Causes or permits ice-cream or any similar commodity to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or
- (B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or
- (C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

As to nuisances.

87. For the purposes of the Public Health Act 1875—

- (A) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;
- (B) Any gutter drain shoot stackpipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ;
- (C) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be a nuisance within the meaning of the said Act.

Reconstruction of drains to

88. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of

the Council except in accordance with the provisions of the byelaws and regulations relating to the drainage of new buildings.

A.D. 1904.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

require
approval of
surveyor.

89. If it shall appear to the Council by the report of the medical officer surveyor or inspector of nuisances that any cesspool or other receptacle used or formerly used as a receptacle for excreta or other obnoxious matter or for the whole or any part of the drainage of a house or any ashpit or any well or disused well belonging to any such house or part of a house is prejudicial to health or otherwise objectionable for sanitary reasons and that it is desirable that the same should be filled up or removed or so altered as to remove any such objection as aforesaid the Council may if they think fit by notice in writing require the owner or occupier of such house or part of a house within a reasonable time to be specified in the notice to cause such cesspool receptacle ashpit or well to be filled up or removed and any drain communicating therewith to be effectually disconnected destroyed or taken away or to cause such cesspool receptacle ashpit or well to be so altered as to remove any such objection as aforesaid.

Provision
for filling up
cesspools &c.

Where it appears that any such cesspool receptacle ashpit or well is used in common by the occupiers of two or more houses or parts of houses the notice for filling up or removal of any such cesspool receptacle ashpit or well may be served on any one or more of the owners or occupiers of such houses and it shall not be necessary to serve such notice on all such owners or occupiers.

If default is made in complying with the requisitions of a notice under this section the Council may themselves carry out the requisitions and may recover the expenses incurred by them in so doing from the owners or occupiers in default in a summary manner as a civil debt or where the owners are the persons liable as private improvement expenses are recoverable under the Public Health Acts.

90. If a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds :

Improper
construction
or repair of
watercloset
or drain.

A.D. 1904.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

Wilful
damage to
drains.

91. If any person cause any drain watercloset waste water-closet earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds :

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Council may
require old
drains to be
laid open for
examination
by surveyor
before com-
municating
with sewers.

92. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer.

Ejection of
steam &c.
not to be an
annoyance
to public.

93. All steam ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company.

Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

94. For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established anew not only if it is established newly but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

A.D. 1904.

Defining
establishing
of a new
business.

95. The Council may if they think fit allow to the owners time for the repayment of any expenses incurred by them under this Part of this Act and in that case section 257 of the Public Health Act 1875 shall apply as if such expenses were expenses for the repayment whereof the owner of the premises was made liable under that Act.

Time for
recovery of
expenses.

PART VIII.

INFECTIOUS DISEASE &c.

96. It shall not be lawful for any owner or driver of a public vehicle used for the carrying of passengers at separate fares knowingly to convey or for any other person knowingly to place in any such public vehicle a person suffering from any infectious disease or for a person suffering from any such disease to enter any such vehicle and every person offending against this enactment shall for every such offence be liable to a fine not exceeding forty shillings.

Prohibiting
conveyance
of infected
persons in
public
vehicle.

97. If any person suffering from any infectious disease is conveyed in any public vehicle the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfected and if he fails so to do he shall be liable to a fine not exceeding five pounds and the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed by him or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connection with such disinfection It shall be the duty of the

Driver &c.
of infected
person to
give notice.

A.D. 1904. Council when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed such person knowing that he was so suffering.

Infected person not to carry on business.

98. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread such infectious disease within the district and if he does so he shall be liable to a penalty not exceeding forty shillings.

Penalty on guardian permitting infected child to attend school.

99. No person being the parent or having care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having seen or procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Principals of schools to furnish lists of scholars.

100. Whenever any scholar who attends any school within the district shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Council at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

Power to medical officer to examine school children.

101. The medical officer may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

A.D. 1904.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

102. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Council or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Council shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

Disinfection
of clothes.

103.—(1) Where on the certificate of the medical officer it appears to the Council that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may if they think fit cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

Filthy and
dangerous
articles to
be purified

(2) If any owner suffer any unnecessary damage the Council shall compensate him for the same and the Council shall also reasonably compensate the owner for any articles destroyed.

104. Whenever it shall be certified to the Council by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Council may require such person to furnish to them a full and complete list of the names and addresses of the owners of clothes for whom

Persons ?
engaged in
washing or
mangling
clothes to
furnish lists
of owners of
clothes in
certain cases.

A.D. 1904. — such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Council shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Protection
against in-
fection of
books in
public
libraries.

105. No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any such library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to the medical officer or to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian or owner or destroyed and if destroyed the Council shall pay to the owner thereof its value Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Dairymen
to notify
infectious
disease
among their
servants.

106. Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the medical officer all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Medical
officer may
require
dairymen to
furnish list
of sources of
their supply
of milk and
of their
customers.

107. If the medical officer shall have reasonable cause to believe that any person in the district is suffering from infectious disease attributable to milk supplied within the district he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to which he has within such six weeks supplied milk within the district and the Council shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

108. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

A.D. 1904.
Compensation to dairymen.

109. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Compensation to persons ceasing employment.

110. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Council may pay expenses of persons in hospital.

111.—(1) Where it appears to the Council upon the certificate of the medical officer that the cleansing and disinfecting of any house or part thereof and of any articles therein likely to retain infection or the destruction of such articles would tend to prevent or check any infectious disease the Council may serve notice on the occupier or where the house or part thereof is unoccupied on the owner of such house or part thereof that the same and any such articles therein will be cleansed and disinfected or (as regards the articles) destroyed by the Council unless the person so notified informs the Council within a time to be specified in the notice from the receipt of the said notice that he will cleanse or disinfect the house or part thereof with any such articles or destroy such articles to the satisfaction of the medical officer as testified by certificate by him within a time fixed in the notice.

Cleansing of infected house and removal of persons therefrom.

(2) If either—

(A) Within the time specified as aforesaid from the receipt of the notice the person on whom the notice is served does not inform the Council as aforesaid ; or

(B) Having so informed the Council he fails to have the house or part thereof and any such articles disinfected or such articles destroyed as aforesaid within the time fixed in the notice ; or

A.D. 1904.

(c) The occupier or owner as the case may be without such notice gives his consent ;

the house or part thereof and the articles shall be cleansed and disinfected or such articles destroyed by the officers of and at the cost of the Council.

(3) For the purpose of carrying into effect this section the Council may enter on any premises between nine o'clock in the morning and six o'clock in the evening.

(4) When the Council have disinfected any house part of a house or any article under the provisions of this section they shall compensate the occupier or owner of such house or part of a house or the owner of such article for any damage thereby caused to such house part of a house or article and when the Council destroy any article under this section they shall reasonably compensate the owner thereof and the amount of any such compensation shall be recoverable in a summary manner.

(5) If the Council deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Council to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian The Council shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

(6) For the purposes of this section the word "house" includes any tent van or similar structure used for human habitation.

(7) The Council may for the purposes of this section—

Themselves build a place of reception ;

Contract for the use of any place of reception.

Any expenses incurred by the Council under this section shall be paid out of the district fund and general district rate.

Certificate
required
before
removal by
railway &c.

112. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the district of such disease the medical officer shall give notice thereof to the person responsible for the conduct of the

burial of the body of such person and it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purposes) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

A.D. 1904.
of body of
person dying
of infectious
disease.

113. The Council may provide or contract with any person or persons to provide nurses for attendance upon persons suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse provided by them.

Council may
provide
nurses.

114. The Council shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

Notice of
provisions
of Part VIII.
of this Act.

PART IX.

MILK PROVISIONS.

115. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty for
selling milk
of diseased
cows.

116. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Penalty on
failing to
isolate
diseased
cows.

117. Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name

Obligation
to notify
cases of
tuberculosis.

A.D. 1904. and address and the situation of the dairy or premises where the cow is.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to
take samples
of milk.

118.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

Power to
inspect cows
and to take
samples of
milk.

119.—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council.

(C) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is

being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make. A.D. 1904.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(G) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

120. The dairyman may appeal against an order of the Council under this Part of this Act or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture and Fisheries who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof Appeal.

A.D. 1904. to the dairyman and the clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture and Fisheries may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture and Fisheries in the matter of the appeal.

The court or the Board of Agriculture and Fisheries as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture and Fisheries as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

Compensation.

121. If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order.

The court or the Board of Agriculture and Fisheries may determine and state whether an order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture and Fisheries or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of provisions of Part IX. of this Act.

122. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

123. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Council before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise. A.D. 1904.
Procedure.

124.—(1) All expenses incurred by the Council in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district. Provided that no such test shall be applied except with the previous consent of the owner of such cow. Expenses
and execu-
tion of this
Part of Act.

(2) This Part of this Act may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

PART X.

POLICE.

125. Any unfenced ground adjoining or abutting upon any street and any recreation ground belonging to or under the control of the Council shall for the purposes of the Vagrancy Act 1824 and any Act for the time being in force altering or amending the same be deemed a public place. Unfenced
ground to be
deemed a
public place.

126. The recreation grounds and any unfenced ground abutting on any street shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and so much of section 28 of such Act as relates to the following offences :— Recreation
grounds to
be deemed
streets for
police pur-
poses.

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal :

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle :

Every common prostitute or night-walker loitering and importing passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book :

A.D. 1904.

paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who slaughters or dresses any cattle or any part thereof except in the case of cattle overdriven which may have met with accident and which for the public safety or other reasonable cause ought to be slaughtered on the spot :

Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework :

Every person who throws or lays any dirt litter or ashes or nightsoil or any carrion fish offal or rubbish on any street.

PART XI.

FIRE BRIGADE.

Power to police constable &c. to enter and break open premises in case of fire.

127. Any police constable acting under the orders of his superior officer and any member of the fire brigade of the Council being on duty and any officer of the Council may enter and if necessary break into any building in the district being or reasonably supposed to be on fire or any building or land adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as they may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

Captain of fire brigade or other officer to have control of operations.

128.—(1) The captain or superintendent of the fire brigade of the Council or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire within the district shall from the time of his arrival and during his presence thereat have the sole charge and control of all operations for the putting out of such fire whether by the Council or any other fire brigade including the fixing of the positions of fire engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining buildings against which the water is to be directed.

(2) The officer in charge of the police at any fire in the district shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate

such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds. A.D. 1904.

PART XII.

COMMON LODGING-HOUSES.

129. The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person appointed by him for that purpose and whose name is registered at the office of the Council shall with the approval of the Council in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Council) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof. If any keeper of a common lodging-house offends against this enactment he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Regulations as to common lodging-house keepers.

130. Every common lodging-house whether registered before or after the passing of this Act shall to the satisfaction of the Council be provided with sufficient sanitary conveniences having regard to the number of lodgers who may be received in such common lodging-house and all waterclosets and urinals shall be provided with a proper water supply laid on for flushing purposes. Any keeper of a common lodging-house who shall make default for twenty-eight days in complying with a notice from the Council requiring him to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. The expression "sanitary conveniences" in this section includes urinals waterclosets ashpits and any similar convenience.

Sanitary conveniences to be provided for inmates of common lodging-houses.

131.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Council on or previous to the thirty-first day of March in every year.

Registration of common lodging-houses and keepers.

A.D. 1904.

(2) — (A) The Council may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position.

(B) And person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they may think fit and award costs to be recoverable summarily as civil debts.

(C) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the district and every person who after the thirty-first day of March one thousand nine hundred and five shall keep a common lodging-house without the registration of such person being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Provisions
to apply to
night shel-
ters &c.

132. The provisions of the Public Health Acts and this Act with reference to common lodging-houses shall extend and apply to all homes refuges night shelters houses and buildings (other than union workhouses) used for the temporary reception or relief of the poor the destitute or the indigent and wherein such persons are allowed to sleep Notice of the provisions of this section shall be given by the Council to the keeper of every shelter or other building to which this section relates within three months from the passing of this Act and before any proceedings are taken under this section.

Notice to
common
lodging-
house
keepers.

133. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house either personally or by leaving the same at the common lodging-house.

PART XIII.

FINANCIAL MATTERS.

Power to
Council to
borrow.

134. The Council may from time to time independently of any other borrowing power borrow at interest on the following securities such sums as shall be requisite for the following purposes (that is to say) : —

(A) For paying the costs of this Act as hereinafter defined on the security primarily of the revenue of the waterworks

undertaking of the Council and if they think fit in addition on the security of the district fund and general district rate the sum necessary for the purpose ;

A.D. 1904,

(B) For the purchase of lands and easements for and for the construction of the waterworks by this Act authorised on the security primarily of the revenue of the waterworks undertaking of the Council and if they think fit in addition on the security of the district fund and general district rate the sum of sixty-nine thousand pounds ;

(C) For the purposes of the electricity supply undertaking of the Council such sums as the Local Government Board may sanction on the security primarily of the revenue of that undertaking and if they think fit in addition on the security of the district fund and general district rate ;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act or for any of the purposes of their waterworks undertaking :

And in calculating the sums the Council may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned. The powers of the Council as to borrowing and reborrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

135. The following sections of the Public Health Act 1875 (that is to say) :—

Provisions
as to mort-
gages.

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ;

Section 238 (Transfer of mortgages) ;

Section 239 (Receiver may be appointed in certain cases) ;

shall extend and apply to and in relation to all mortgages made under the powers of this Act.

136. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

Periods for
payment off
of money
borrowed.

As to moneys borrowed for the purposes (B) mentioned in the section of this Act the marginal note whereof is "Power to Council to borrow" within sixty years from the date or dates of borrowing the same :

A.D. 1904.

As to moneys borrowed for the purpose (A) mentioned in the said section within five years from the date of the passing of this Act:

As to moneys borrowed with the sanction of the Local Government Board within such period as that Board may sanction.

Mode of
payment off
of money
borrowed.

137. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund. Provided that it shall not be obligatory to commence such repayments by instalments or to set apart or appropriate any moneys to or for the purposes of a sinking fund in respect of moneys borrowed under paragraph (B) of the section of this Act of which the marginal note is "Power to Council to borrow" until after the expiration of six years from the passing of this Act.

Sinking
fund.

138.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed periods of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed periods of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed periods a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1904.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the

A.D. 1904. sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed periods the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Power to
reborrow.

139. The Council may except as hereinafter provided re-borrow for the purpose of paying off any moneys borrowed or reborrowed under this Act which have not been paid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the reborrowing and which at the time of the repayment it was intended to reborrow. Provided that the Council shall not have power to reborrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys reborrowed shall be deemed to form the same loan as the money for the repayment of which the reborrowing has been made and shall be repaid within the prescribed period.

Protection
of lender
from inquiry.

140. Any person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act nor be bound to see to the application nor be answerable for any loss or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

141. The Council shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the

receipt of the person in whose name any loan or security for loan stands in the register or books of the Council shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

A.D. 1904.

142.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

Return respecting sinking fund to Local Government Board.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required

A.D. 1904. — for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

Expenses of
executing
Act.

143. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for) shall be paid out of the district fund or general district rate :

Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

Inquiries
by Local
Government
Board.

144.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred on them or the giving of any consents under this Act and their inspectors shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) All costs incurred by the Local Government Board (including such reasonable sum not exceeding three guineas a day as that Board may determine for the service of any inspector) in relation to the duties imposed on that Board under this Act shall save as by this Act otherwise provided be paid by the Council.

Application
of water
revenue.

145.—(1) The Council shall apply all money received by them on account of water revenue in manner and in the order following (that is to say) :—

Firstly In payment of the working and establishment expenses and cost of maintenance of the undertaking ;

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the undertaking ;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking ;

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking ; A.D. 1904.

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to five thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the water revenue (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Article I. except subdivisions (1) and (2) of the Order of 1883 is hereby repealed.

146. If in any year the amount of the water revenue actual or estimated shall be insufficient for the payment of the charges thereon the deficiency shall be made good by an increase of the general district rate made within one year after each such deficiency has been ascertained or estimated and the Council in preparing the estimates of the amount required in their judgment to be raised by means of a general district rate for the purposes of the district shall include therein such sum (if any) as in their judgment is necessary to be provided in aid of any deficiency from time to time arising or expected to arise as aforesaid in the water revenue. Provision in case of deficiency of water revenue.

147. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it Application of money borrowed.

A.D. 1904. — is authorised to be borrowed and to which capital is properly applicable.

Audit of accounts.

148. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and under the Act of 1874 and to the audit of such accounts and section 23 of the Act of 1874 is hereby repealed.

PART XIV.

MISCELLANEOUS.

General provisions as to byelaws.

149. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws made by the Council under the powers of this Act.

Informations &c. by whom to be laid.

150. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1899 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Evidence of appointments authority &c.

151. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentication and service of notices &c.

152. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the

same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business. A.D. 1904.

153. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal. As to appeal.

154. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties.

155. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

156. All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and subject to the provisions of the Police Act 1890 shall be carried by him to the credit of the district fund or to such other fund as the Council direct. Penalties to be paid over to treasurer.

157. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Compensation &c. how to be determined.

158. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter Saving for indictments &c.

A.D. 1904. by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges &c.
not dis-
qualified.

159. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Powers of
Act cumu-
lative.

160. All powers rights and remedies given to the Council by this Act shall (except as regards the water undertaking or where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown
rights.

161. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Expenses of
Act.

162. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the obtaining of the resolution of owners and ratepayers aforesaid shall after taxation by the taxing officer of the House of Lords or House of Commons be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of any of their rates or funds and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act.

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